

Subjects of Sex/Gender/Desire

One is not born a woman, but rather becomes one.

Simone de Beauvoir

Strictly speaking, 'women' cannot be said to exist.

Julia Kristeva

Woman does not have a sex.

Luce Irigaray

The deployment of sexuality... established this notion of sex.

Michel Foucault

The category of sex is the political category that founds society as heterosexual.

Monique Wittig

[T]here is the political problem that feminism encounters in the assumption that the term *women* denotes a common identity. Rather than a stable signifier that commands the assent of those whom it purports to describe and represent, *women*, even in the plural, has become a troublesome term, a site of contest, a cause for anxiety. As Denise Riley's title suggests, *Am I That Name?* is a question produced by the very possibility of the name's multiple significations.¹ If one 'is' a woman, that is surely not all one is; the term fails to be exhaustive, not because a pregendered 'person' transcends the specific paraphernalia of its gender, but because gender is not always constituted coherently or consistently in different historical contexts, and because gender intersects with racial, class, ethnic, sexual, and regional modalities of discursively constituted identities. As a result, it becomes impossible to separate out 'gender' from the political and cultural intersections in which it is invariably produced and maintained.

The political assumption that there must be a universal basis for feminism, one which must be found in an identity assumed to exist cross-culturally, often accompanies the notion that the oppression of women has some singular form discernible in the universal or hegemonic structure of patriarchy or masculine domination. The notion of a universal patriarchy has been widely criticized in recent years for its failure to account for the workings of gender oppression in the concrete cultural contexts in which it exists. Where those various contexts have been consulted within such theories, it has been to find 'examples' or 'illustrations' of a universal principle that is assumed from the start. That form of feminist theorizing has come under criticism for its efforts to colonize and appropriate non-Western cultures to support highly

Western notions of oppression, but because they tend as well to construct a 'Third World' or even an 'Orient' in which gender oppression is subtly explained as symptomatic of an essential, non-Western barbarism. The urgency of feminism to establish a universal status for patriarchy in order to strengthen the appearance of feminism's own claims to be representative has occasionally motivated the shortcut to a categorial or fictive universality of the structure of domination, held to produce women's common subjugated experience.

Although the claim of universal patriarchy no longer enjoys the kind of credibility it once did, the notion of a generally shared conception of 'women', the corollary to that framework, has been much more difficult to displace. Certainly, there have been plenty of debates: Is there some commonality among 'women' that preexists their oppression, or do 'women' have a bond by virtue of their oppression alone? Is there a specificity to women's cultures that is independent of their subordination by hegemonic, masculinist cultures? Are the specificity and integrity of women's cultural or linguistic practices always specified against and, hence, within the terms of some more dominant cultural formation? If there is a region of the 'specifically feminine', one that is both differentiated from the masculine as such and recognizable in its difference by an unmarked and, hence, presumed universality of 'women'? The masculine/feminine binary constitutes not only the exclusive framework in which that specificity can be recognized, but in every other way the 'specificity' of the feminine is once again fully decontextualized and separated off analytically and politically from the constitution of class, race, ethnicity, and other axes of power relations that both constitute 'identity' and make the singular notion of identity a misnomer.²[...]

Is the construction of the category of women as a coherent and stable subject an unwitting regulation and reification of gender relations? And is not such a reification precisely contrary to feminist aims? To what extent does the category of women achieve stability and coherence only in the context of the heterosexual matrix? If a stable notion of gender no longer proves to be the foundational premise of feminist politics, perhaps a new sort of feminist politics is now desirable to contest the very reifications of gender and identity, one that will take the variable construction of identity as both a methodological and normative prerequisite, if not a political goal.

To trace the political operations that produce and conceal what qualifies as the juridical subject of feminism is precisely the task of a *feminist genealogy* of the category of women. [...]

Although the unproblematic unity of 'women' is often invoked to construct a solidarity of identity, a split is introduced in the feminist subject by the distinction between sex and gender. Originally intended to dispute the biology-is-destiny formulation, the distinction between sex and gender serves the

argument that whatever biological intractability sex appears to have, gender is culturally constructed: hence, gender is neither the causal result of sex nor as seemingly fixed as sex. The unity of the subject is thus already potentially contested by the distinction that permits of gender as a multiple interpretation of sex.

If gender is the cultural meanings that the sexed body assumes, then a gender cannot be said to follow from a sex in any one way. Taken to its logical limit, the sex/gender distinction suggests a radical discontinuity between sexed bodies and culturally constructed genders. Assuming for the moment the stability of binary sex, it does not follow that the construction of 'men' will accrue exclusively to the bodies of males or that 'women' will interpret only female bodies. Further, even if the sexes appear to be unproblematically binary in their morphology and constitution (which will become a question), there is no reason to assume that genders ought also to remain as two.³ The presumption of a binary gender system implicitly retains the belief in a mimetic relation of gender to sex whereby gender mirrors sex or is otherwise restricted by it. When the constructed status of gender is theorized as radically independent of sex, gender itself becomes a free-floating artifice, with the consequence that *man* and *masculine* might just as easily signify a female body as a male one, and *woman* and *feminine* a male body as easily as a female one.

This radical splitting of the gendered subject poses yet another set of problems. Can we refer to a 'given' sex or a 'given' gender without first inquiring into how sex and/or gender is given, through what means? And what is 'sex' anyway? Is it natural, anatomical, chromosomal, or hormonal, and how is a feminist critic to assess the scientific discourses which purport to establish such facts for us? Does sex have a history?⁴ Does each sex have a different history, or histories? Is there a history of how the duality of sex was established, a genealogy that might expose the binary options as a variable construction? Are the ostensibly natural facts of sex discursively produced by various scientific discourses in the service of other political and social interests? If the immutable character of sex is contested, perhaps this construct called 'sex' is as culturally constructed as gender; indeed, perhaps it was always already gender, with the consequence that the distinction between sex and gender turns out to be no distinction at all.⁵

It would make no sense, then, to define gender as the cultural interpretation of sex, if sex itself is a gendered category. Gender ought not to be conceived merely as the cultural inscription of meaning on a pre-given sex (a juridical conception); gender must also designate the very apparatus of production whereby the sexes themselves are established. As a result, gender is not to culture as sex is to nature; gender is also the discursive/cultural means by which 'sexed nature' or 'a natural sex' is produced and established as 'prediscursive', prior to culture, a politically neutral surface on which culture acts. [. . .]

Is there 'a' gender which persons are said *to have*, or is it an essential attribute that a person is said *to be*, as implied in the question 'What gender are you?' When feminist theorists claim that gender is the cultural interpretation of sex or that gender is culturally constructed, what is the manner or mechanism of this construction? If gender is constructed, could it be constructed differently, or does its constructedness imply some form of social determinism, foreclosing the possibility of agency and transformation? Does 'construction' suggest that certain laws generate gender differences along universal axes of sexual difference? How and where does the construction of gender take place? What sense can we make of a construction that cannot assume a human construct or prior to that construction? On some accounts, the notion that gender is constructed suggests a certain determinism of gender meanings inscribed on anatomically differentiated bodies, where those bodies are understood as passive recipients of an inexorable cultural law. When the relevant 'culture' that 'constructs' gender is understood in terms of such a law or set of laws, then it seems that gender is as determined and fixed as it was under the biology-is-destiny formulation. In such a case, not biology, but culture, becomes destiny.

On the other hand, Simone de Beauvoir suggests in *The Second Sex* that 'one is not born a woman, but, rather, becomes one'.⁶ For Beauvoir, gender is 'constructed', but implied in her formulation is an agent, a *cogito*, who somehow takes on or appropriates that gender and could, in principle, take on some other gender. Is gender as variable and volitional as Beauvoir's account seems to suggest? Can 'construction' in such a case be reduced to a form of choice? Beauvoir is clear that one 'becomes' a woman, but always under a cultural compulsion to become one. And clearly, the compulsion does not come from 'sex'. There is nothing in her account that guarantees that the 'one' who becomes a woman is necessarily female. If 'the body is a situation',⁷ as she claims, there is no recourse to a body that has not always already been interpreted by cultural meanings; hence, sex could not qualify as a prediscursive anatomical facticity. Indeed, sex, by definition, will be shown to have been gender all along.⁸

The controversy over the meaning of *construction* appears to founder on the conventional philosophical polarity between free will and determinism. As a consequence, one might reasonably suspect that some common linguistic restriction on thought both forms and limits the terms of the debate. Within those terms, 'the body' appears as a passive medium on which cultural meanings are inscribed or as the instrument through which an appropriative and interpretive will determines a cultural meaning for itself. In either case, the body is figured as a mere *instrument* or *medium* for which a set of cultural meanings are only externally related. But 'the body' is itself a construction, as are the myriad 'bodies' that constitute the domain of gendered subjects. Bodies cannot be said to have a signifiable existence prior to the mark of

their gender; the question then emerges: To what extent does the body *come into being* in and through the mark(s) of gender? How do we reconceive the body no longer as a passive medium or instrument awaiting the enlivening capacity of a distinctly immaterial will?

Whether gender or sex is fixed or free is a function of a discourse which, it will be suggested, seeks to set certain limits to analysis or to safeguard certain tenets of humanism as presuppositional to any analysis of gender. The locus of intractability, whether in 'sex' or 'gender' or in the very meaning of 'construction', provides a clue to what cultural possibilities can and cannot become mobilized through any further analysis. The limits of the discursive analysis of gender presuppose and preempt the possibilities of imaginable and realizable gender configurations within culture. This is not to say that any and all gendered possibilities are open, but that the boundaries of analysis suggest the limits of a discursively conditioned experience. These limits are always set within the terms of a hegemonic cultural discourse predicated on binary structures that appear as the language of universal rationality. Constraint is thus built into what that language constitutes as the imaginable domain of gender. [...]

What can be meant by 'identity', then, and what grounds the presumption that identities are self-identical, persisting through time as the same, unified and internally coherent? More importantly, how do these assumptions inform the discourses on 'gender identity'? It would be wrong to think that the discussion of 'identity' ought to proceed prior to a discussion of gender identity for the simple reason that 'persons' only become intelligible through becoming gendered in conformity with recognizable standards of gender intelligibility. Sociological discussions have conventionally sought to understand the notion of the person in terms of an agency that claims ontological priority to the various roles and functions through which it assumes social visibility and meaning. Within philosophical discourse itself, the notion of 'the person' has received analytic elaboration on the assumption that whatever social context the person is 'in' remains somehow externally related to the definitional structure of personhood, be that consciousness, the capacity for language, or moral deliberation. Although that literature is not examined here, one premise of such inquiries is the focus of critical exploration and inversion. Whereas the question of what constitutes 'personal identity' within philosophical accounts almost always centers on the question of what internal feature of the person establishes the continuity or self-identity of the person through time, the question here will be: To what extent do *regulatory practices* of gender formation and division constitute identity, the internal coherence of the subject, indeed, the self-identical status of the person? To what extent is 'identity' a normative ideal rather than a descriptive feature of experience? And how do the regulatory practices that govern gender also

govern culturally intelligible notions of identity? In other words, the 'coherence' and 'continuity' of 'the person' are not logical or analytic features of personhood, but, rather, socially instituted and maintained norms of intelligibility. Inasmuch as 'identity' is assured through the stabilizing concepts of sex, gender, and sexuality, the very notion of 'the person' is called into question by the cultural emergence of those 'incoherent' or 'discontinuous' gendered beings who appear to be persons but who fail to conform to the gendered norms of cultural intelligibility by which persons are defined.

'Intelligible' genders are those which in some sense institute and maintain relations of coherence and continuity among sex, gender, sexual practice, and desire. In other words, the spectres of discontinuity and incoherence, themselves thinkable only in relation to existing norms of continuity and coherence, are constantly prohibited and produced by the very laws that seek to establish causal or expressive lines of connection among biological sex, culturally constituted genders, and the 'expression' or 'effect' of both in the manifestation of sexual desire through sexual practice.

The notion that there might be a 'truth' of sex, as Foucault ironically terms it, is produced precisely through the regulatory practices that generate coherent identities through the matrix of coherent gender norms. The heterosexualization of desire requires and institutes the production of discrete and asymmetrical oppositions between 'feminine' and 'masculine', where these are understood as expressive attributes of 'male' and 'female'. The cultural matrix through which gender identity has become intelligible requires that certain kinds of 'identities' cannot 'exist'—that is, those in which gender does not follow from sex and those in which the practices of desire do not 'follow' from either sex or gender. 'Follow' in this context is a political relation of entailment instituted by the cultural laws that establish and regulate the shape and meaning of sexuality. Indeed, precisely because certain kinds of 'gender identities' fail to conform to those norms of cultural intelligibility, they appear only as developmental failures or logical impossibilities from within that domain. Their persistence and proliferation, however, provide critical opportunities to expose the limits and regulatory aims of that domain of intelligibility and, hence, to open up within the very terms of that matrix of intelligibility rival and subversive matrices of gender disorder.

Before such disordering practices are considered, however, it seems crucial to understand the 'matrix of intelligibility'. Is it singular? Of what is it composed? What is the peculiar alliance presumed to exist between a system of compulsory heterosexuality and the discursive categories that establish the identity concepts of sex? If 'identity' is an *effect* of discursive practices, to what extent is gender identity, construed as a relationship among sex, gender, sexual practice, and desire, the effect of a regulatory practice that can be identified as compulsory heterosexuality? Would that explanation return us to yet another totalizing frame in which compulsory heterosexuality merely

life

takes the place of phallogocentrism as the monolithic cause of gender oppression? [...]

The articulation 'I feel like a woman' by a female or 'I feel like a man' by a male presupposes that in neither case is the claim meaninglessly redundant. Although it might appear unproblematic to be a given anatomy (although we shall later consider the way in which that project is also fraught with difficulty), the experience of a gendered psychic disposition or cultural identity is considered an achievement. Thus, 'I feel like a woman' is true to the extent that Aretha Franklin's invocation of the defining Other is assumed:

('You make me feel like a natural woman.' This achievement requires a differentiation from the opposite gender. Hence, one is one's gender to the extent that one is not the other gender, a formulation that presupposes and enforces the restriction of gender within that binary pair.

Gender can denote a *unity* of experience, of sex, gender, and desire, only when sex can be understood in some sense to necessitate gender—where gender is a psychic and/or cultural designation of the self—and desire—where desire is heterosexual and therefore differentiates itself through an oppositional relation to that other gender it desires. The internal coherence or unity of either gender, man or woman, thereby requires both a stable and oppositional heterosexuality. That institutional heterosexuality both requires and produces the univocity of each of the gendered terms that constitute the limit of gendered possibilities within an oppositional, binary gender system. This conception of gender presupposes not only a causal relation among sex, gender, and desire, but suggests as well that desire reflects or expresses gender and that gender reflects or expresses desire. The metaphysical unity of the three is assumed to be truly known and expressed in a differentiating desire for an oppositional gender—that is, in a form of oppositional heterosexuality. Whether as a naturalistic paradigm which establishes a causal continuity among sex, gender, and desire, or as an authentic-expressive paradigm in which some true self is said to be revealed simultaneously or successively in sex, gender, and desire, here 'the old dream of symmetry', as Irigaray has called it, is presupposed, reified, and rationalized.

This rough sketch of gender gives us a clue to understanding the political reasons for the substantializing view of gender. The institution of a compulsory and naturalized heterosexuality requires and regulates gender as a binary relation in which the masculine term is differentiated from a feminine term, and this differentiation is accomplished through the practices of heterosexual desire. The act of differentiating the two oppositional moments of the binary results in a consolidation of each term, the respective internal coherence of sex, gender, and desire. [...]

If it is possible to speak of a 'man' with a masculine attribute and to understand that attribute as a happy but accidental feature of that man, then it is also possible to speak of a 'man' with a feminine attribute, whatever that

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evident

is, but still to maintain the integrity of the gender. But once we dispense with the priority of 'man' and 'woman' as abiding substances, then it is no longer possible to subordinate dissonant gendered features as so many secondary and accidental characteristics of a gender ontology that is fundamentally intact. If the notion of an abiding substance is a fictive construction produced through the compulsory ordering of attributes into coherent gender sequences, then it seems that gender as substance, the viability of *man* and *woman* as nouns, is called into question by the dissonant play of attributes that fail to conform to sequential or causal models of intelligibility.

The appearance of an abiding substance or gendered self, what the psychiatrist Robert Stoller refers to as a 'gender core',⁹ is thus produced by the regulation of attributes along culturally established lines of coherence. As a result, the exposure of this fictive production is conditioned by the deregulated play of attributes that resist assimilation into the ready made framework of primary nouns and subordinate adjectives. It is of course always possible to argue that dissonant adjectives work retroactively to redefine the substantive identities they are said to modify and, hence, to expand the substantive categories of gender to include possibilities that they previously excluded. But if these substances are nothing other than the coherences contingently created through the regulation of attributes, it would seem that the ontology of substances itself is not only an artificial effect, but essentially superfluous.

In this sense, *gender* is not a noun, but neither is it a set of free-floating attributes, for we have seen that the substantive effect of gender is performatively produced and compelled by the regulatory practices of gender coherence. Hence, within the inherited discourse that is, constituting the identity it is purported to be. In this sense, gender is always a doing, though not a doing by a subject who might be said to preexist the deed. The challenge for rethinking gender categories outside of the metaphysics of substance will have to consider the relevance of Nietzsche's claim in *On the Genealogy of Morals* that 'there is no "being" behind doing, effecting, becoming; "the doer" is merely a fiction added to the deed—the deed is everything'.¹⁰ In an application that Nietzsche himself would not have anticipated or condoned, we might state as a corollary: There is no gender identity behind the expressions of gender; that identity is performatively constituted by the very 'expressions' that are said to be its results.

[*Gender Trouble* (New York and London: Routledge, 1990), 1–25.]